

|                                                                                                                                                                                                                                                                                            |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|---------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------|--|
| <b>SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES</b>                                                                                                                                                                                                         |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  | 1. REQUISITION NO.<br>636-26-3-5058-0071                                                                                  |                                                                                                                                                                                                            | PAGE 1 OF 69                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                           |  |
| <b>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, &amp; 30</b>                                                                                                                                                                                                                                 |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| 2. CONTRACT NO.                                                                                                                                                                                                                                                                            |  | 3. AWARD/EFFECTIVE DATE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 4. ORDER NO.                                                                                                              |                                                                                                                                                                                                            | 5. SOLICITATION NUMBER<br>36C26326Q0515                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                           |  |
|                                                                                                                                                                                                                                                                                            |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           |                                                                                                                                                                                                            | 6. SOLICITATION ISSUE DATE<br>05-05-2026                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                           |  |
| 7. FOR SOLICITATION INFORMATION CALL:                                                                                                                                                                                                                                                      |  | a. NAME<br>Amanda Patterson-Elliott                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |                                                                                                                           | b. TELEPHONE NO. (No Collect Calls)<br>319-688-3578                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 8. OFFER DUE DATE/LOCAL TIME<br>05-18-2026<br>10:00am CDT |  |
| 9. ISSUED BY<br>DEPARTMENT OF VETERANS AFFAIRS<br>NETWORK CONTRACTING OFFICE 23<br><br>1303 5TH STREET, SUITE 300<br>CORALVILLE IA 52241                                                                                                                                                   |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  | CODE 36C263                                                                                                               |                                                                                                                                                                                                            | 10. THIS ACQUISITION IS<br><input checked="" type="checkbox"/> UNRESTRICTED OR <input checked="" type="checkbox"/> SET ASIDE: 100 % FOR:<br><input checked="" type="checkbox"/> SMALL BUSINESS<br><input type="checkbox"/> HUBZONE SMALL BUSINESS<br><input type="checkbox"/> SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS<br><input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM<br><input type="checkbox"/> EDWOSB<br><input type="checkbox"/> 8(A)<br>NAICS: 238220<br>SIZE STANDARD: \$19 Million |                                                           |  |
| 11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED<br><input type="checkbox"/> SEE SCHEDULE                                                                                                                                                                                           |  | 12. DISCOUNT TERMS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  | <input type="checkbox"/> 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)                                      |                                                                                                                                                                                                            | 13b. RATING<br>N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                           |  |
|                                                                                                                                                                                                                                                                                            |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           |                                                                                                                                                                                                            | 14. METHOD OF SOLICITATION<br><input checked="" type="checkbox"/> RFQ <input type="checkbox"/> IFB <input type="checkbox"/> RFP                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| 15. DELIVER TO<br>Department of Veterans Affairs<br>NWI Omaha VA Health Care Systems<br><br>4101 Woolworth Avenue<br>Omaha NE 68105                                                                                                                                                        |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  | CODE                                                                                                                      |                                                                                                                                                                                                            | 16. ADMINISTERED BY<br>DEPARTMENT OF VETERANS AFFAIRS<br>NETWORK CONTRACTING OFFICE 23<br><br>1303 5TH STREET, SUITE 300<br>CORALVILLE IA 52241                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| 17a. CONTRACTOR/OFFEROR                                                                                                                                                                                                                                                                    |  | CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | FACILITY CODE                                                                                                             |                                                                                                                                                                                                            | 18a. PAYMENT WILL BE MADE BY<br>DEPARTMENT OF VETERANS AFFAIRS<br>FMS-VA-2 (101)<br>FINANCIAL SERVICES CENTER<br>PO BOX 149971<br>AUSTIN TX 78714-9971<br><br>PHONE: FAX:                                                                                                                                                                                                                                                                                                                                                                                           |                                                           |  |
|                                                                                                                                                                                                                                                                                            |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| TELEPHONE NO. UEI: EFT:                                                                                                                                                                                                                                                                    |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  | 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED<br><input type="checkbox"/> SEE ADDENDUM |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| <input type="checkbox"/> 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER                                                                                                                                                                                               |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| 19. ITEM NO.                                                                                                                                                                                                                                                                               |  | 20. See CONTINUATION Page<br>SCHEDULE OF SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                                                                                                           | 21. QUANTITY                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 22. UNIT                                                  |  |
|                                                                                                                                                                                                                                                                                            |  | This is a Request for Quotes for the NWI Omaha VA Medical Center. The Medical Center requires maintenance and operations of the Andover/Schneider Electric EcoStruxure automation equipment and other HVAC services, as described in the Statement of Work.<br><br>Technical Questions are due by 5:00pm CST on 05/08/2026 to amanda.patterson-elliott@va.gov<br><br>Quotes are due by 10:00am CST on 05/18/2026 to amanda.patterson-elliott@va.gov<br><br>A site visit is not scheduled for this solicitation.<br><br>Wage Determination 2015-5005 applies to this requirement.<br><br>(Use Reverse and/or Attach Additional Sheets as Necessary) |  |                                                                                                                           |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 23. UNIT PRICE                                            |  |
|                                                                                                                                                                                                                                                                                            |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 24. AMOUNT                                                |  |
|                                                                                                                                                                                                                                                                                            |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| 25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page<br>636-3660162-5058-854100-2543-010055592<br>636-26-3-5058-0071                                                                                                                                                                |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           | 26. TOTAL AWARD AMOUNT (For Govt. Use Only)                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| <input checked="" type="checkbox"/> 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA                                                                                                                                    |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           | <input checked="" type="checkbox"/> ARE <input type="checkbox"/> ARE NOT ATTACHED.                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| <input type="checkbox"/> 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA                                                                                                                                                            |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           | <input type="checkbox"/> ARE <input type="checkbox"/> ARE NOT ATTACHED                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| <input type="checkbox"/> 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                                                                                                           | <input type="checkbox"/> 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS: |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| 30a. SIGNATURE OF OFFEROR/CONTRACTOR                                                                                                                                                                                                                                                       |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  | 31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)                                                          |                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                           |  |
| 30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)                                                                                                                                                                                                                                              |  | 30c. DATE SIGNED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | 31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)<br>John Milroy<br>VA-VHA-RPOC-2023-0067                                  |                                                                                                                                                                                                            | 31c. DATE SIGNED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                           |  |

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## SECTION B - CONTINUATION OF SF 1449 BLOCKS

### B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C263

DEPARTMENT OF VETERANS AFFAIRS

NETWORK CONTRACTING OFFICE 23

1303 5TH STREET, SUITE 300

CORALVILLE IA 52241

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

[X] 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

[X] 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ Monthly

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

| AMENDMENT NO | DATE |
|--------------|------|
|              |      |
|              |      |
|              |      |

## B.2 STATEMENT OF WORK

**Project Name: OMVA HVAC System Controls & Services**

### Location of Services

**Omaha VA Medical Center (OMVA)**, 4101 Woolworth Ave, Omaha, NE 68105

Facility Size: 813,984 sq. ft

### STATEMENT OF WORK

Maintenance: The Contractor will be responsible for the maintenance and operations of the existing hybrid system with Andover/Schneider Electric EcoStruxure. The Contractor shall provide building automation system analysis and work, as necessary and in accordance with the manufacturer's specifications, including, but not limited to, the following:

1. Examination, cleaning, and recalibration of sensors/thermostats, humidity controls, temperature controls, pressure controls, relays, damper actuators, instrumental and accessories directly pertaining to the automatic temperature control system.
2. Check and verify performance of temperature controls equipment in accordance with manufacturer's specifications, original design criteria, and proper maintenance practice.
3. Check and confirm control system sequence of operation to ensure optimum system efficiency and economy.
4. Lubricate as required air compressors, control valve packing glands, damper bearings and linkages as well as other accessories directly pertaining to the control system.
5. Inspect automatic temperature control valves for proper stroke, close off, and packing conditions.
6. Contractor shall ensure proper operation of all mechanical, electrical, control systems in accordance with manufacturer recommendations, OSHA, EPA, ASHRAE, VA regulations and facility-specific requirements. All work shall be

consistent with VA policies and standards, including, but not limited to, VA Handbooks 6102 and 6500; VA Directives 6004, 6513, and 6517; and National Institute of Standards and Technology (NIST) standards, including Federal Information Processing Standards (FIPS).

Equipment list: The Contractor is responsible for the maintenance of the equipment listed below. Any equipment added to the control system by the Contractor will be added onto this list and will be the responsibility of the Contractor to maintain accordingly. The pricing for services shall be at the prevailing labor and materials rates. After review and a determination of fair and reasonable prices, bilateral modifications will be required prior to additional services commencing.

| Quantity | Component            | Location    |
|----------|----------------------|-------------|
| 158      | VFDs                 | OMVA campus |
| 1        | Enterprise server    | OMVA campus |
| 28       | AS-P                 | OMVA campus |
| 2        | AS-B                 | OMVA campus |
| 3        | Workstation          | OMVA campus |
| 53       | B3 controllers       | OMVA campus |
| 346      | Infinite controllers | OMVA campus |
| 502      | MPX controllers      | OMVA campus |

Point-to-Point Checklist for AHU/RTU Controls: The VA requires a qualified HVAC controls Contractor to provide a detailed point-to-point checklist for each Air Handling Unit (AHU) and Rooftop Unit (RTU) at the Omaha VAMC at least once per year. The Contractor shall perform inspections for approximately 5 AHUs or RTUs per month, given the current inventory of HVAC source equipment at the facility.

The Contractor is responsible for:

1. Conducting a comprehensive verification of all control connections, sensors, and actuators for each AHU and RTU.
2. Ensuring all control components, including temperature sensors, pressure sensors, humidity sensors, actuators, dampers, and other related devices, operate correctly and are properly calibrated in the field and on the building automation system graphics.
3. Providing the VA with a monthly update documenting all work performed, including findings, adjustments, and corrective actions taken.
4. Documenting any calibration done to the controls and sensors.

Failure to include this documentation may result in delays in invoice approval. The Contractor must ensure timely and accurate reporting to maintain compliance with the contract requirements.

This thorough and regular inspection ensures reliable and efficient operation of the HVAC systems, contributing to a comfortable and safe hospital environment.

Reporting Requirements: The checklist provided by the Contractor shall include inspection and verification of all connections and items listed below:

1. Supply Air Fan Status
  - a. Verify the status indicator shows if the fan is On/Off.
  - b. Check the feedback signal from the fan starter or VFD.
2. Supply Air Fan Speed
  - a. Confirm the fan speed is being accurately read by the control system.
  - b. Verify the VFD output matches the commanded speed.
3. Cooling Coil Valve Position
  - a. Check the percentage open or close position of the cooling coil valve.
  - b. Ensure the actuator responds correctly to control signals.
4. Hot Water Valve Position
  - a. Verify the position feedback of the hot water valve.
  - b. Ensure the valve actuator operates correctly in response to control signals.
5. Outside Air Damper Command
  - a. Confirm the command signal to the outside air damper actuator.
  - b. Verify the position of the damper matches the command.
6. Return Air Temperature
  - a. Verify the temperature sensor is providing accurate readings.
  - b. Cross-check against a calibrated temperature measurement device.
7. Mixed Air Temperature
  - a. Ensure the mixed air temperature sensor is correctly placed and functional.
  - b. Verify the temperature reading is accurate.
8. Filter Differential Pressure
  - a. Check the differential pressure sensor across the filter.
  - b. Verify readings align with manual gauges or specified values.
9. Heating Coil Supply Air Temperature
  - a. Confirm the supply air temperature after the heating coil is accurately sensed.
  - b. Cross-check with a calibrated temperature sensor.
10. Temperature Low Limit Alarm
  - a. Verify the system is set to alarm if the temperature falls below the configured low limit.
  - b. Test the alarm functionality by simulating a low-temperature condition.
11. Cooling Coil Supply Air Temperature
  - a. Ensure the temperature sensor after the cooling coil is accurate.
  - b. Compare with a calibrated device for validation.

## 12. UV Light Status

- a. Verify the status of the UV light (On/Off).
- b. Ensure any indicator or feedback signal reflects the actual UV light status.

## 13. Supply Air Temperature

- a. Confirm that the air temperature sensor is functional and accurate.
- b. Validate with a secondary measurement device.

## 14. Smoke Alarm

- a. Ensure the smoke alarm system is active and can detect smoke presence.
- b. Test the alarm functionality according to safety protocols.

## 15. Supply Air Static Pressure

- a. Verify the static pressure sensor in the supply air duct.
- b. Compare readings with a manual manometer or calibrated pressure device.

## 16. CFM (Cubic Feet per Minute)

- a. Ensure airflow measurement devices (e.g., anemometer, flow station) are accurate.
- b. Cross-check readings with a calibrated flow measurement tool.

## 17. Cold Water Temperature

- a. Confirm the temperature of the chilled water entering the cooling coil.
- b. Validate with a secondary temperature sensor.

## 18. Cold Water GPM (Gallons per Minute)

- a. Verify the flow rate of the cold water through the cooling coil.
- b. Check against flow meters or manual flow measurement tools.

## 19. Supply Air Fan Command

- a. Ensure the control signal to the supply air fan/VFD is correct.
- b. Verify the fan responds appropriately to command signals.

This checklist includes the necessary verification steps for each point description to ensure proper operation and accurate measurements of the AHU/RTU system. The contractor is to also ensure that each equipment is verified, that it is operating and its status matches the status that is shown on the building automation system graphics.

Control Service task: Throughout the duration of the contract, the VA may assign additional tasks to the Contractor. These additional tasks are outside of normal maintenance but considered part of this contract. The Contractor is expected to accomplish these tasks within a reasonable and agreed-upon time frame, depending on the project. The Contractor shall also ensure that these tasks will be compatible and work in sync with our current existing hybrid system, Andover/Schneider Electric EcoStruxure System. Contractor will anticipate completion of tasks and maintenance within normal working hours (Monday-Friday, 6am – 2:30pm) but may encounter tasks that impact patients and/or staff. Tasks significantly impacting patients or staff will need to be completed outside of normal hours. Any task that significantly impacts patients and/or staff needs to be approved by the COR prior to starting the task. VA will provide

necessary materials and equipment for assigned tasks, while the Contractor will provide labor and tools accordingly. Listed below are the tasks forecasted for the next 4 years:

- Base year
  1. Inpatient pharmacy clean rooms
    - a. Replace the current air valves in the inpatient pharmacy clean room with high-speed actuating air valves and install air flow monitoring on the supply air. Total of six rooms
    - b. The contractor will have to hire a TAB professional to perform proper balancing prior to the contract close out. Any additional deficiencies found during certification of hoods or space will be installed by contractor at the contractor's expense
    - c. This needs to be installed and completed by August 1, 2026
  2. ARF steam valve
    - a. Install a 2.5" steam valve for ARF steam converter
  3. Inline refractometer glycol
    - a. Install the refractometer and connect it to the BMS, including the programming and graphics
    - b. This refractometer will be installed on RTU 2,3, and 7
  4. install differential pressure sensors on the prefilters for critical AHU listed below
    - a. Chemotherapy AHU1&2
    - b. Cath lab AHU 1&2
    - c. ER AHU
    - d. Gastro 8<sup>th</sup> floor RTU
    - e. Microbiology AHU
    - f. RTU 2,3,7
    - g. SPS
    - h. B716 OPC AHU 1
    - i. ICU AHU 1&2
    - j. Inpatient Pharmacy AHU
    - k. OPC 1B AHU
    - l. ACC AHU 5
  5. Upgrade thermostat on floors 5-7
    - a. Upgrade from pneumatic thermostats to digital thermostats on floors 5-7
- Option year 1
  1. Isolation rooms post-op



- a. Replace the existing air valves in the post-op isolation rooms with high-speed actuating air valves and install air flow monitoring on the supply air of four rooms
  - 2. Front entry RTU and sterile scope RTU
    - a. Swap the old controls to the current system controls
- Option year 2
  - 1. Unit heaters in the ER FCU heater
    - a. Install a schneider electric VACnet level controller, onsite control system check-out, testing and starting up. Also install all required wiring and wiring accessories in the enclosure
  - 2. VAV replacement
    - a. Replace the VAV in RTU1
- Option year 3
  - 1. ACC Iso room
    - a. Install a Schneider electric BACnet level controller, install 7" high resolution TFT touch display with dimmable backlight, provide on-sight control system check-out, testing and start-up and install all required wiring and wiring accessories
  - 2. Microbiology humidifiers
    - a. Re-pipping of the supply and drain lines
- The Contractor shall provide bid pricing for each individual project listed in the Contract Line Item Number (CLIN) structure. Each project requires the Contractor to be prepared to provide the VA with turnkey solutions, ensuring all aspects of the project are handled from start to finish without additional requirements from the VA.
- No VA Government-Furnished Equipment (GFE) or materials obtained under the existing preventative maintenance contract shall be used to complete these tasks. The Contractor is expected to procure and manage all necessary resources independently.
- Furthermore, these tasks must be performed by Contractors distinct from the staff who regularly maintain the site for recurring services. This separation ensures that there is no overlap in responsibilities and that each project receives the dedicated expertise and attention required for successful completion in adherence to the contractual obligations.
- The Contractor shall be responsible for the proper storage and implementation of VA-acquired materials. The Contractor is also responsible for providing the VA with a quote directly from the equipment supplier for any necessary parts required outside the one-time service projects in each contract year.

### Website Graphic Design

- The Contractor will provide a qualified person to develop the graphic design of the website that will be used to monitor the HVAC systems controls and improve the quality of life for the operators.
- They will provide user-friendly BAS program updates
- A qualified person for the graphic design of the website is someone who was trained by Schneider Electric with 2 years of experience.
- This person will have 2 visits a month during normal working hours. Each visit will be 8 hours each, 16 total hours a month. Once the website is fully developed and meets the VAHCS and the control service satisfaction, the person will switch to 1 visit a month. Each visit will be 4 hours a month.

### Emergency callout

- The Contractor shall provide emergency service as requested on a "preferred-customer response" basis. Response time for emergencies or requested service shall not exceed four (4) hours.
- The Contractor will have a slotted sum time of 220 hours for emergency and non-scheduled emergency call outs per year any task/maintenance not done during the normal working hours will be considered non-scheduled emergency callouts. Each call out should not last longer than 8 hours and be completed at the soonest possible time.
- The VA will be billed for the actual hours worked on for the emergency and non-scheduled emergency call outs

Parts for repairs: The VA shall provide all replacement parts needed to keep the system in operating condition as originally designed by the manufacturer. Parts may be repaired or replaced, as the Contractor deems appropriate, approval for parts for repair and replacement shall be given from the COR. The COR will rout the purchases as needed. No used parts will be used to repair this equipment. Contractor shall furnish the VATR with a written estimate of the cost to make necessary repairs. Contractor should also provide a comparison quote to the VATR for what that item would have cost for commercial pricing, so the Government has basis for making price fair and reasonable determination, or as alternative. If cost exceeds cost listed for applicable line item, the contracting officer with VATR and after determination of price fair and reasonableness.

### **Performance Work Period of Performance**

| <b>Year</b>   | <b>Period Begins</b> | <b>Period Ends</b> |
|---------------|----------------------|--------------------|
| Base year     | <b>05/25/2026</b>    | <b>05/24/2027</b>  |
| Option year 1 | <b>05/25/2027</b>    | <b>5/24/2028</b>   |

|               |                   |                  |
|---------------|-------------------|------------------|
| Option year 2 | <b>05/25/2028</b> | <b>5/24/2029</b> |
| Option year 3 | <b>05/25/2029</b> | <b>5/24/2030</b> |
| Option year 4 | <b>05/25/2030</b> | <b>5/24/2031</b> |

Exercise of option years will be made at Government's discretion based on continued need for services, Contractor performance, and availability of funds in a given fiscal year.

#### **Contact information Contracting Officer Representative / Technical Representative Contact Information**

The Contractor shall provide to the contracting officer and the VATR specific mobile number(s), email address (es) and/or SMS texting number(s) which can always be used to alert the Contractor, including weeknights, weekends, and holidays. The Contractor shall also provide a single point of contact that the COR can always contact either during working hours or after working hours. In addition, the Government shall provide the Contractor the names of the agency personnel authorized to initiate emergency service calls – contracting officer, contract monitor (COR/VATR), and/or alternate contract monitor (alternate COR/VATR). Both parties entering the contractual agreement will include three points of contact as a double redundancy.

#### **Work Hours Expected**

The Contractor will provide full time services and management for work assigned and during normal business hours. The Contractor shall limit all patient, and staff impacts by phasing work during or after hours in accordance with needs of the medical center. Normal business hours are 0600-1430. Should services provided not impact on patients or staff services, work can be performed during normal business hours. The Contractor shall provide at least one person on site to work on what is listed in the SOW. Questions on local facility impacts and work proposed by the Contractor shall be directed to the Contracting Officer Representative (COR) for approval of work to be performed during or after hours.

#### **Kickoff Meeting**

The general Contractor shall schedule a kickoff meeting no later than **5 business days** following notice to proceed. At a minimum the local site COR, and the contracting officer shall attend. The Contractor shall provide an agenda in preparation of the meeting. The Contractor shall take meeting minutes and shall email these notes to all parties included in the meeting invite. At a minimum the Contractor shall provide the general Contractor contact information that can be reached 24/7 as well as subcontractors, and any required onsite coordination for inspection, testing or deliveries during the duration of the period of performance, any hazards expected, preconstruction

risk assessments where applicable and infection control risk assessments where applicable.

### **Certifications**

It is the expectation that all Contractors meet the below qualifications. If contracted employees change from the proposal provided in the solicitation the general Contractor shall provide credentials for VA review and approval prior to work.

The Contractor shall be an authorized service provider of the entire existing Schneider Electric EcoStruxure System throughout the period of performance. The Contractor shall provide written proof of status as an authorized service provider from the corporate headquarters. Contractor shall service the existing Schneider Electric EcoStruxure building automation equipment at VAHCS to include the enterprise level software and computers, building controllers, primary equipment controllers and terminal unit equipment controllers. Contractor shall maintain the existing onsite building automation software (both controller and enterprise level) in accordance with the manufacturer's most current revision level for the life of the contract. The Contractor shall be authorized by the original equipment manufacturer for repairing, replacing, and programming the controls at the VAHCS throughout the period of performance.

The Contractor shall provide at least one person who was trained for Schneider Electric EcoStruxure System and has over 3 years of experience for the performance of the contracted duties. The assignment by the Contractor of a long-term service technician primarily responsible for service under this contract is strongly advised to maintain consistency and continuity at the facility level.

### **General Requirements**

All work shall comply with the most recent edition of USACE EM 385-1-1, comply with 29 CFR 1926, comply with 29 CFR 1910 as incorporated by reference within 29 CFR 1926, comply with ASSP A10.34, and all applicable federal, state, and local laws, ordinances, criteria, rules and regulations. Submit matters of interpretation of standards for resolution before starting work. Where the requirements of this specification, applicable laws, criteria, ordinances, regulations, and referenced documents vary, the most stringent requirements govern except with specific approval and acceptance.

All electrical work shall comply with VHA Directive 1028, NFPA 70 (NEC), NFPA 70B, NFPA 70E, 29 CFR Part 1910 Subpart J – General Environmental Controls, 29 CFR Part 1910 Subpart S – Electrical, and 29 CFR 1926 Subpart K.

All installation, maintenance, and services of equipment or machinery shall comply with 29 CFR 1910.147 except for specifically referenced operations in 29 CFR 1926

All hot work shall be safeguarded in accordance with NFPA 241 and NFPA 51B. Hot work permits shall be issued daily for work in accordance with local policy.

All confined space entry shall comply with 29 CFR 1926, Subpart AA except for specifically referenced operations in 29 CFR 1926.

All floor and wall openings shall comply with 29 CFR 1926 Subpart M and EM 385-1-1.

All crane work shall comply with 29 CFR 1926 Subpart CC and EM 385-1-1. Crane lift plans shall be reviewed and approved by the contracting officer representative prior to work

The fall protection (FP) threshold height requirement is 4ft for ALL WORK in government occupied sites, unless the OSHA 29 CFR 1926 or EM 385-1-1 requirements are more stringent. All work at or above this threshold shall meet OSHA or EM 385-1-1 whichever is more stringent.

Contractor shall maintain free and unobstructed access to facility emergency services and for fire, police and other emergency response forces in accordance with NFPA 241

Contractor shall follow OSHA standard 1926.405(a)(2)(i) when applicable which states temporary wiring shall be removed immediately upon completion of construction or the purpose for which the wiring was installed.

### **Job Hazard Analysis**

Shall any of the below hazards be expected or present themselves during the work, an activity hazard analysis also known as a job hazard analyses, job safety analyses and activity safety analyses shall be performed meeting all the requirements from the below. Deviations will only be approved by the contracting officer.

|     | Job Site Risks associated with the below                   |
|-----|------------------------------------------------------------|
| 1)  | Emergency response;                                        |
| 2)  | Contingency for severe weather;                            |
| 3)  | Fire Prevention;                                           |
| 4)  | Medical Support;                                           |
| 5)  | Posting of emergency telephone numbers;                    |
| 6)  | Prevention of alcohol and drug abuse;                      |
| 7)  | Site sanitation (housekeeping, drinking water, toilets);   |
| 8)  | Night operations and lighting;                             |
| 9)  | Hazard communication program;                              |
| 10) | Welding/Cutting "Hot" work;                                |
| 11) | Electrical Safe Work Practices (Electrical LOTO/NFPA 70E); |
| 12) | General Electrical Safety;                                 |
| 13) | Hazardous energy control (LOTO);                           |
| 14) | Site-Specific Fall Protection & Prevention;                |
| 15) | Excavation/trenching;                                      |

|     |                                                           |
|-----|-----------------------------------------------------------|
| 16) | Asbestos abatement;                                       |
| 17) | Lead abatement;                                           |
| 18) | Crane Critical lift;                                      |
| 19) | Respiratory protection;                                   |
| 20) | Health hazard control program;                            |
| 21) | Radiation Safety Program;                                 |
| 22) | Abrasive blasting;                                        |
| 23) | Heat/Cold Stress Monitoring;                              |
| 24) | Crystalline Silica Monitoring (Assessment);               |
| 25) | Demolition plan (to include engineering survey);          |
| 26) | Formwork and shoring erection and removal;                |
| 27) | Pre-Cast Concrete;                                        |
| 28) | Public (Mandatory compliance with ANSI/ASSP A10.34-2012); |
| 29) | Sub-Contractor or cross-trade coordination;               |

Before beginning each work activity involving a type of work presenting hazards not experienced in previous project operations or where a new work crew or sub-Contractor is to perform the work, the Contractor(s) performing that work activity shall prepare an AHA (Example electronic AHA forms can be found on the US Army Corps of Engineers web site)

AHAs shall define the activities being performed and identify the work sequences, the specific anticipated hazards, site conditions, equipment, materials, and the control measures to be implemented to eliminate or reduce each hazard to an acceptable level of risk.

Work shall not begin until the AHA for the work activity has been accepted by the Contracting Officer Representatives and discussed with all engaged in the activity, including the Contractor, subcontractor(s), and Government on-site representatives at preparatory and initial control phase meetings.

The names of the Competent/Qualified Person(s) required for a particular activity (for example, excavations, scaffolding, fall protection, other activities as specified by OSHA, EM 385-1-1, or other State and Local agencies) shall be identified and included in the AHA. Certification of their competency/qualification shall be submitted to the contracting officer representative for acceptance prior to the start of that work activity.

The AHA shall be reviewed and modified as necessary to address changing site conditions, operations, or change of competent/qualified person(s).

If more than one Competent/Qualified Person is used on the AHA activity, a list of names shall be submitted as an attachment to the AHA. Those listed must be Competent/Qualified for the type of work involved in the AHA and familiar with current site safety issues.

If a new Competent/Qualified Person (not on the original list) is added, the list shall be updated (an administrative action not requiring an updated AHA). The new person shall acknowledge in writing that he or she has reviewed the AHA and is familiar with current site safety issues.

Submit AHAs to the contracting officer, primary contracting officer representative and alternate contracting officer representative. Included with AHA's for any electrical work shall include a Contractor provided simplified one line diagram indicating all potential power sources and after work ensuring corrections to such diagram occur.

### **Preconstruction Risk Assessment / Infection Control Risk Assessment**

Contractor shall control all construction-associated hazards that affect VA medical facilities, their occupants, services and mission-essential functions and capabilities is critical in all medical center facilities.

Contractor shall ensure interior construction activities causing disturbance of existing dust, or creating new dust, must be conducted within ventilation-controlled areas that minimize the flow of airborne particles into patient areas.

Contractor shall ensure compliance VHA 7715 and post a copy of the latest PCRA and ICRA forms at all jobs sites found at

- VHA PCRA: <http://vaww.hefp.va.gov/resources/vha-pre-construction-risk-assessment-pcra>
- VHA ICRA: <http://vaww.hefp.va.gov/resources/vha-infection-control-risk-assessment-icra>

VHA-PCRAs and ICRAs will be re-validated and updated as needed based on but not limited to changes from affected individuals, areas/locations, scope, Contractor means and methods, safety requirements, phasing, Contractor competencies and capabilities.

The COR with concurrence from a VHA infection control specialist, VHA patient safety and VHA occupational health and safety officer will have ultimate decision on activity type and the level of precautions the contract needs to take.

### **Deliverables**

- The contractor shall maintain the equipment in working order. Equipment repairs outside of contracted services, emergency or otherwise, must be approved by the Contracting Officer prior to the services being performed.

- The contractor will do daily check-in via email. The Contractor will inform the COR any maintenance was done and any problems that has arisen.
- The contractor will be required to conduct a performance review of services provided monthly with VAHCS. Topics may include but are not limited to, review of services provided, discussion of work performed since previous review, progress of projects, questions that may arise at the facility level, and any other methods of maximizing optimum service performance.
- Delays in contractor reporting will result in deductions of the monthly approved invoice. This is to include Contractor's failure to report clearly and precisely the above requirements.
- The contractor is to provide a detailed schematic of the locations of all the controllers and any device they own that's installed throughout the hospital. This should also be updated every time they are relocated, removed or installed.
- The contractor is to create a document that contains the logs of any adjustments to the calibration of transducers and critical AHU controllers. This document should be updated and shared with the COR.

### **Schedule**

Contractor shall provide a schedule to meet each aspect covered in the performance work statement no later than **10 calendar days** from notice to proceed. Changes to this schedule shall be communicated to the Contracting Officer, primary and/or alternate COR immediately.

Due to the continuous operations of the hospital and sensitive populations served, all equipment or utility outages shall be communicated to the contracting officer, primary and alternate COR for VA approval. The Contractor shall build time for the VA to receive adequate approvals for such outages into their schedule and be prepared to work outside of normal business hours to accomplish any outages to limit impact to the patients, staff and visitors of the NWIHCS.

### **Site Security**

In accordance with FAR 52.204-9 and VA Directive 0735 – Personal Identity Verification of Federal Employees and Contractors, any contract person who requires routine physical access to a Federally-controlled facility and/or routine access to a Federally-controlled information system will be required to verify their identity prior to providing services under the contract. Prior to providing services under the contract, each contract person will be asked to provide two (2) forms of identification from the Accepted Identification Documentation List to the appropriate VA representative to obtain a proper VA-issued identification card (PIV badge). No work onsite shall ensue without issuance of a VA PIV badge or internal escorting. Contractor is expected to build lead times for PIV issuance into schedules. The general Contractor shall be onsite for any subcontractors who do not have a PIV card issued to them for the duration of the



subcontractor's work including escorting subcontractors. The prime Contractor shall check in all subcontractors prior to performing work each day in the engineering office space.

### **TMS Training Requirements**

'TMS 20939 No Access' training is required for all contractor employees.

## **National Archives and Records Administration (NARA) Records Management Language for Contracts RECORDS MANAGEMENT OBLIGATIONS**

### **Applicability**

This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

### **Definitions**

"Federal record" as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

includes Department of Veteran Affairs records.

does not include personal materials.

applies to records created, received, or maintained by Contractors pursuant to their Department of Veteran Affairs contract.

may include deliverables and documentation associated with deliverables.

### **Requirements**

Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.

Department of Veteran Affairs and its Contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of Department of Veteran Affairs or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to Department of Veteran Affairs. The agency must report promptly to NARA in accordance with 36 CFR 1230.

The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the contract action. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to Department of Veteran Affairs control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the contract action. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-Contractor) in support of this contract requiring the

disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-Contractor) is required to abide by Government and Department of Veteran Affairs guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.

The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with Department of Veteran Affairs policy.

The Contractor shall not create or maintain any records containing any non-public Department of Veteran Affairs information that are not specifically tied to or authorized by the contract.

The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act. The Department of Veteran Affairs owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which Department of Veteran Affairs shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.

Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take Department of Veteran Affairs-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

[Note: To the extent an agency requires Contractors to complete records management training, the agency must provide the training to the Contractor.]

Flowdown of requirements to subcontractors

The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this contract action, and require written subcontractor acknowledgment of same.

Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

## B.3 PRICE/COST SCHEDULE

### ITEM INFORMATION

| ITEM NUMBER | DESCRIPTION OF SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001        | <p>Preventative Maintenance for 12 months - Field Work</p> <p>Contract Period: Base<br/> POP Begin: 05-25-2026<br/> POP End: 05-24-2027<br/> PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br/> PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 1.00     | JB   |            |        |
| 0002        | <p>Preventative Maintenance for 12 months - Software/graphics</p> <p>Contract Period: Base<br/> POP Begin: 05-25-2026<br/> POP End: 05-24-2027<br/> PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br/> PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 1.00     | JB   |            |        |
| 0003        | <p>1. Inpatient pharmacy clean rooms:</p> <ol style="list-style-type: none"> <li>Replace the current air valves in the inpatient pharmacy clean room with high-speed actuating air valves and install air flow monitoring on the supply air. Total of six rooms</li> <li>Contractor is to hire a TAB professional to perform proper balancing prior to contract closeout. Any additional deficiencies found during the certification of the hood or space will be installed by contractor at the contractor's expense</li> <li>This needs to be installed and completed by August 1, 2026</li> </ol> <p>Contract Period: Base<br/> POP Begin: 05-25-2026<br/> POP End: 05-24-2027<br/> PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br/> PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment</p> | 1.00     | JB   |            |        |
| 0004        | <p>2. ARF steam valve</p> <ol style="list-style-type: none"> <li>Install a 2.5" steam valve for ARF steam converter</li> </ol> <p>Contract Period: Base<br/> POP Begin: 05-25-2026<br/> POP End: 05-24-2027<br/> PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br/> PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 1.00     | JB   |            |        |
| 0005        | <p>3. Inline refractometer glycol</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | 1.00     | JB   |            |        |

- a. Install the refractometer and connect it to the BMS, including the programming and graphics
- b. This refractometer will be installed on RTU 2,3, and 7

Contract Period: Base

POP Begin: 05-25-2026

POP End: 05-24-2027

PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors

PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment

**0006**

1.00 JB

4. Install differential pressure sensors on the prefilters for critical AHU listed below

- a. Chemotherapy AHU 1&2
- b. Cath lab AHU 1&2
- c. ER AHU
- d. Gastro 8th floor RTU
- e. Microbiology AHU
- f. RTU 2,3,7
- g. SPS
- h. B716 OPC AHU 1
- i. ICU AHU 1&2
- j. Inpatient Pharmacy AHU
- k. OPC 1B AHU
- l. ACC AHU 5

Contract Period: Base

POP Begin: 05-25-2026

POP End: 05-24-2027

PRINCIPAL NAICS CODE: 811210 - Electronic and Precision Equipment Repair and Maintenance

PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment

**0007**

1.00 JB

5. Upgrade Thermostat on floors 5-7

- a. Upgrade from pneumatic thermostats to digital thermostats on floors 5-7

Contract Period: Base

POP Begin: 05-25-2026

POP End: 05-24-2027

PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors

PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment

**1001**

1.00 JB

Preventative Maintenance for 12 months - Field Work

Contract Period: Option 1

POP Begin: 05-25-2027

POP End: 05-24-2028

PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors

PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment

**1002**

1.00 JB

Preventative Maintenance for 12 months - Software/graphics

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |      |    |  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|
| Contract Period: Option 1<br>POP Begin: 05-25-2027<br>POP End: 05-24-2028<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment                                                                                                                                                                                                             |      |    |  |
| <b>1003</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 1.00 | JB |  |
| 1. Isolation rooms post-op<br>a. Replace the existing air valves in the post-op isolation rooms with high-speed actuating air valves and install air flow monitoring on the supply air of four rooms<br><br>Contract Period: Option 1<br>POP Begin: 05-25-2027<br>POP End: 05-24-2028<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment |      |    |  |
| <b>1004</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 1.00 | JB |  |
| 2. Front entry RTU and sterile scope RTU<br>a. Swape the old controls to the current system controls<br><br>Contract Period: Option 1<br>POP Begin: 05-25-2027<br>POP End: 05-25-2028<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment                                                                                                 |      |    |  |
| <b>2001</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 1.00 | JB |  |
| Preventative Maintenance for 12 months - Field Work<br><br>Contract Period: Option 2<br>POP Begin: 05-25-2028<br>POP End: 05-24-2029<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment                                                                                                                                                  |      |    |  |
| <b>2002</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 1.00 | JB |  |
| Preventative Maintenance for 12 months - Software/graphics<br><br>Contract Period: Option 2<br>POP Begin: 05-25-2028<br>POP End: 05-24-2029<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment                                                                                                                                           |      |    |  |
| <b>2003</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 1.00 | JB |  |
| 1. Unit heaters in the ER FCU heater<br>a. Install a schneider electric VACnet level controller, onsite control system                                                                                                                                                                                                                                                                                                                                                                                                        |      |    |  |

|             |                                                                                                                                                                                                                                                                                                                   |      |    |  |  |
|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|--|
|             | check-out, testing and starting up. Also install all required wiring and wiring accessories in the enclosure                                                                                                                                                                                                      |      |    |  |  |
|             | Contract Period: Option 2<br>POP Begin: 05-25-2028<br>POP End: 05-24-2029<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment |      |    |  |  |
| <b>2004</b> | 2. VAV replacement<br>a. Replace the VAV in RTU1                                                                                                                                                                                                                                                                  | 1.00 | JB |  |  |
|             | Contract Period: Option 2<br>POP Begin: 05-25-2028<br>POP End: 05-24-2029<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment |      |    |  |  |
| <b>3001</b> | Preventative Maintenance for 12 months - Field Work                                                                                                                                                                                                                                                               | 1.00 | JB |  |  |
|             | Contract Period: Option 3<br>POP Begin: 05-25-2029<br>POP End: 05-24-2030<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment |      |    |  |  |
| <b>3002</b> | Preventative Maintenance for 12 months - Software/graphics                                                                                                                                                                                                                                                        | 1.00 | JB |  |  |
|             | Contract Period: Option 2<br>POP Begin: 05-25-2029<br>POP End: 05-24-2030<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment |      |    |  |  |
| <b>3003</b> | 1. ACC Iso room<br>a. Install a Schneider electric BACnet level controller, install 7" high resolution TFT touch display with dimmable backlight, provide on-sight control system check-out, testing and start-up and install all required wiring and wiring accessories                                          | 1.00 | JB |  |  |
|             | Contract Period: Option 3<br>POP Begin: 05-25-2029<br>POP End: 05-24-2030<br>PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors<br>PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment |      |    |  |  |
| <b>3004</b> |                                                                                                                                                                                                                                                                                                                   | 1.00 | JB |  |  |

2. Microbiology humidifiers  
 a. Re-pipping of the supply and drain lines

Contract Period: Option 3  
 POP Begin: 05-25-2029  
 POP End: 05-24-2030  
 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors  
 PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment

**4001**

1.00 JB

Preventative Maintenance for 12 months - Field Work

Contract Period: Option 4  
 POP Begin: 05-25-2030  
 POP End: 05-24-2031  
 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors  
 PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment

**4002**

1.00 JB

Preventative Maintenance for 12 months - Software/graphics

Contract Period: Option 2  
 POP Begin: 05-25-2030  
 POP End: 05-24-2031  
 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors  
 PRODUCT/SERVICE CODE: J041 - Maintenance, Repair, and Rebuilding of Equipment - Refrigeration, Air Conditioning, and Air Circulating Equipment

**GRAND TOTAL**



## SECTION C - CONTRACT CLAUSES

### C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)

(a) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions.* The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice.

(1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include—

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer—System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer—Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR part 1315.

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.—

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by 33.211 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to

comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Other compliances.* The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at 52.212-5.

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The Standard Form 1449.

(8) Other documents, exhibits, and attachments

(9) The specification.

(t) [Reserved]

(u) *Unauthorized Obligations.*

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

#### ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

#### **C.2 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)**

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to

prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor at least 5 days before the contract expires.

(End of Clause)

### **C.3 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)**

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed four (4) years.

(End of Clause)

### **C.4 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)**

(a) *Definitions.* As used in this clause—

*American Security Drone Act-covered foreign entity* means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

*Backhaul* means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

*Covered application* means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

*Covered article*, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

*Covered foreign country* means The People's Republic of China.

*Covered telecommunications equipment or services* means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

*Critical technology* means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or



(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

*FASC-prohibited unmanned aircraft system* means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

*FASCSA order* means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

*Information technology*, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

*Intelligence community*, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

*Interconnection arrangement* means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

*Kaspersky Lab-covered article* means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

*Kaspersky Lab-covered entity* means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab;  
or

(4) Any entity of which Kaspersky Lab has a majority ownership.

*National security system*, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

*Roaming* means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

*Sensitive compartmented information* means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

*Sensitive compartmented information system* means a national security system authorized to process or store sensitive compartmented information.

*Source* means a non-Federal supplier, or potential supplier, of products or services, at any tier.

*Subsidiary* means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

*Substantial or essential component* means any component necessary for the proper function or performance of a piece of equipment, system, or service.

*Unmanned aircraft* means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

*Unmanned aircraft system* means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part

of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

*(e) Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

*(h) General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report

the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

- (i) Contract number and order number, if applicable;
  - (ii) The specific prohibition the product or service is not complying with;
  - (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);
  - (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
  - (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
  - (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);
  - (vii) Whether alternative products or services are available that would comply with the prohibition;
  - (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
    - (A) Brand;
    - (B) Model number, OEM number, manufacturer part number, or wholesaler number; and
    - (C) Item description, as applicable.
  - (ix) Any readily available information about mitigation actions implemented or recommended.
- (2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:
- (i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.
  - (ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.
  - (iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.
- (3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph

(h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

## **C.5 VAAR 852.204-72 PERSONNEL VETTING AND CREDENTIALING (DEVIATION) (MAR 2026)**

(a) Definitions. As used in this clause –



*VA Information system* is the same as information system and means, pursuant to 38 U.S.C. 5727, a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

*VA sensitive information* means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) *General*. Contractor personnel assigned to work for or on behalf of VA must undergo a background investigation commensurate with the risk and sensitivity level designation associated with the work to be performed at the level indicated in the contract. The Contractor and subcontractors shall comply with VA Directive/Handbook 0710, Personnel Security and Suitability Program, which can be accessed at: <https://vaww.va.gov/vapubs/index.cfm>.

(c) *Risk and Sensitivity Levels*. The following table identifies the risk and sensitivity levels that apply to any personnel providing services under this contract. \*VA Administrations, organizations and staff offices will use the OPM [Position Designation Tool](#).

| Positions/Tasks Designated as Non-Sensitive Positions – Tier 1/Low Risk  |
|--------------------------------------------------------------------------|
|                                                                          |
|                                                                          |
|                                                                          |
|                                                                          |
|                                                                          |
|                                                                          |
| Positions/Tasks Designated as Non-Sensitive Positions – Tier 2/Mod Risk  |
|                                                                          |
|                                                                          |
|                                                                          |
|                                                                          |
|                                                                          |
|                                                                          |
| Positions/Tasks Designated as Non-Sensitive Positions – Tier 4/High Risk |
|                                                                          |
|                                                                          |

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Security clearances are granted to individuals with a specific requirement for access to classified material (for example, Confidential, Secret and Top Secret). Contractor personnel that are required to obtain a security clearance will be subject to a Tier 3 or Tier 5 investigation. The following sensitivity designations have been assigned for the identified Tier 3 and Tier 5 required by this contract:

Tier 3:

Tier 5:

(d) *Fitness*. The results from a background investigation are used to determine if an individual's fitness is sufficient for that individual to perform work for or on behalf of VA in the position identified in this contract. Contractor fitness determinations are made in accordance with 5 CFR Part 731.202.

Fitness requirements for employment are separate and distinct from job qualifications. If a Contractor or subcontractor employee is found to be unsuitable or unfit to provide services under this contract, the Contractor shall immediately remove the employee from working on this contract and take those necessary steps that restrict the employee's logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information.

The Contractor shall advise the employee that they are not permitted to access any VA controlled building or real property in relation to this contract. The removal of an unfit Contractor or subcontractor employee does not alleviate the Contractor from satisfying the requirements of this contract. The Government will not reimburse the Contractor for any costs associated with the recruitment/replacement of an employee or subcontractor employee who is found to be unfit.

(e) *Identification Cards*. The Government will provide a Personal Identification Verification (PIV) card or other identification card, as necessary, to fit Contractor personnel who require physical access to VA facilities and/or logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information. Contractor and subcontractor personnel shall prominently display their PIV/identification card on their persons while working at a VA facility and shall present their PIV/identification card for inspection upon request by a VA official. The Contractor must surrender the employee or subcontractor employee's PIV/identification card in accordance with the requirements set forth in Directive/Handbook 0735 when any of the following events occur:

1. When no longer needed for contract performance.
2. Upon completion of the Contractor/subcontractor employee's employment.
3. Upon contract completion or termination.

(f) *Lost/stolen*. Immediately upon detection, the Contractor shall report a lost or stolen PIV/identification card to the Government authorities as identified in Directive/Handbook 0735.

Within 48 hours of reporting the lost/stolen PIV/identification card, the Contractor shall submit to the Program Manager an incident report that describes the relevant facts and circumstances regarding the loss/theft. If the loss/theft was reported by the Contractor to the local police, the Contractor shall further submit a copy of the final police report to the Program Manager within 48 hours of the report being made available by the local police department. The Government will not reimburse the Contractor for any costs that result from lost/stolen PIV/identification card(s).

(g) *Regular Reporting.* The Contractor shall submit a status report to PIV Sponsor within 5 working days after the end of each calendar quarter and as requested by the Government in order to initiate contract closeout procedures. The report must provide the status of each contractor/subcontractor employee who is required to have a PIV/identification card during the performance of the contract. The report shall identify the Contractor and the contract number, and list the following status for each contractor/subcontractor employee who holds a PIV/identification card under this contract:

1. Contractor/subcontractor employee name.
2. Name of VA facility where Contractor/subcontractor employee works, if applicable.
3. Date background check submitted for Contractor/subcontractor employee.
4. Date PIV/identification card issued to Contractor/subcontractor employee.
5. Contractor/subcontractor employee's PIV/identification card number, as applicable.
6. Date Contractor/subcontractor employee no longer has need for PIV/identification card.
7. Date Contractor notified VA that PIV/identification card is no longer required.
8. Date Contractor returned PIV/identification card was returned to VA.

(h) *Flow down of clause.* The Contractor shall include the substance of this clause in subcontracts, third-party agreements, and BAA's, in which subcontractors, third-party servicers/employees, and business associates will perform functions where they will have physical access to a VA facility or logical access to VA data, information, VA sensitive information, or information technology or VA information system containing such data or information.

(End of Clause)

## **C.6 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)**

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission.* A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements.* Invoices shall comply with FAR 32.905.

(e) *Exceptions.* If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

## **C.7 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text

available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.va.gov/oal/library/vaar/>

(End of Clause)

| <b><u>FAR<br/>Number</u></b> | <b><u>Title</u></b>                                                | <b><u>Date</u></b> |
|------------------------------|--------------------------------------------------------------------|--------------------|
| 52.204-9                     | PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL             | JAN 2011           |
| 852.203-70                   | COMMERCIAL ADVERTISING                                             | MAY 2018           |
| 852.204-70                   | PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (DEVIATION) | MAR 2026           |

## **52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)**

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<https://www.acquisition.gov/browse/index/far>

<https://www.va.gov/oal/library/vaar/>

(End of Clause)

| <b><u>FAR<br/>Number</u></b> | <b><u>Title</u></b>                                                                 | <b><u>Date</u></b> |
|------------------------------|-------------------------------------------------------------------------------------|--------------------|
| 52.203-13                    | CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT                                      | NOV 2021           |
| 52.203-16                    | PREVENTING PERSONAL CONFLICTS OF INTEREST                                           | JUN 2020           |
| 52.203-17                    | CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS                                            | NOV 2023           |
| 52.204-13                    | SYSTEM FOR AWARD MANAGEMENT MAINTENANCE                                             | OCT 2018           |
| 52.204-27                    | PROHIBITION ON A BYTEDANCE COVERED APPLICATION                                      | JUN 2023           |
| 52.204-29                    | FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS—REPRESENTATION AND DISCLOSURES | DEC 2023           |
| 52.209-10                    | PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS                      | NOV 2015           |
| 52.222-3                     | CONVICT LABOR                                                                       | JUN 2003           |
| 52.222-35                    | EQUAL OPPORTUNITY FOR VETERANS                                                      | JUN 2020           |
| 52.222-37                    | EMPLOYMENT REPORTS ON VETERANS                                                      | JUN 2020           |
| 52.222-38                    | COMPLIANCE WITH VETERANS' EMPLOYMENT REPORTING REQUIREMENTS                         | FEB 2016           |
| 52.222-40                    | NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT              | DEC 2010           |
| 52.222-41                    | SERVICE CONTRACT LABOR STANDARDS                                                    | AUG 2018           |
| 52.222-50                    | COMBATING TRAFFICKING IN PERSONS                                                    | OCT 2025           |
| 52.222-54                    | EMPLOYMENT ELIGIBILITY VERIFICATION                                                 | JAN 2025           |
| 52.222-62                    | PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706                                         | JAN 2022           |
| 52.226-8                     | ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING                 | MAY 2024           |
| 52.232-33                    | PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT                    | OCT 2018           |
| 52.233-1                     | DISPUTES                                                                            | MAY 2014           |

|            |                                                                 |          |
|------------|-----------------------------------------------------------------|----------|
| 52.233-3   | PROTEST AFTER AWARD                                             | AUG 1996 |
| 52.233-4   | APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM                     | OCT 2004 |
| 852.222-71 | COMPLIANCE WITH EXECUTIVE ORDER 13899<br>(DEVIATION) (APR 2025) | APR 2025 |

(End of Addendum to 52.212-4)

## **C.8 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION FEB 2025)**

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[X] (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[] (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

[] (3) [Reserved]

☐ (4) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

☒ (5) 52.204–10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109–282) (31 U.S.C. 6101 note).

☐ (6) [Reserved]

☒ (7) 52.204–14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

☐ (8) 52.204–15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

☐ (9) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

☐ (10) 52.204–28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115–390, title II).

☐ (11)(i) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204–30.

☒ (12) 52.209–6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved]

☐ (15) 52.219–3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219–4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☒ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

☐ (21)(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JAN 2025) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☒ (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) [Reserved]

☒ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☒ (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) [Reserved]

☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

☐ (32) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).

☐ (33) [Reserved]

☐ (34) [Reserved]

☒ (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.



☒ (36)(i) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☒ (37) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☒ (39)(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☒ (40) 52.222-54, Employment Eligibility Verification (JAN 2025). (E.O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C.6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) [Reserved]

☐ (45) [Reserved]

☒ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (DEVIATION FEB 2025) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671I).

☐ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

☐ (ii) Alternate I (JAN 2017) of 52.224-3.

☐ (48)(i) 52.225-1, Buy American—Supplies (OCT 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (OCT 2022) of 52.225-1.

☐ (49)(i) 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

☐ (ii) Alternate I [Reserved].

- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (OCT 2022) of 52.225-3.
- ☐ (50) 52.225–5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note
- ☐ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513)
- ☒ (56) 52.229–12, Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).
- ☒ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
- ☐ (63) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C. 3901 note prec.).
- ☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

☐ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

#### Employee Class

#### Monetary Wage-Fringe Benefits

☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(v) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(vi) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219–8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219–8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)(A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232–40.

(xxvi) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C.3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

## **SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS**

See Attached: Wage Determination 2015-5005\_Douglas County Omaha NE

## SECTION E - SOLICITATION PROVISIONS

### E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;
- (6) Price and any discount terms;
- (7) "Remit to" address, if different than mailing address;
- (8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);
- (9) Acknowledgment of Solicitation Amendments;



(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and—

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by-

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at [assisthelp@dlamail](mailto:assisthelp@dlamail).

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at [www.sam.gov](http://www.sam.gov) for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at [www.sam.gov](http://www.sam.gov) for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing.* If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of Provision)

## ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

## **ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS— COMMERCIAL ITEMS**

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

### **SITE VISITS:**

There is no site visit planned.

### **TECHNICAL QUESTIONS:**

Technical questions shall be accepted by the Government in writing only no later than 10:00 AM Central Time, Friday May 8, 2026. Please list "Technical Questions – 36C26326Q0515" in subject line of e-mail and send to Amanda Patterson-Elliott [atamanda.patterson-elliott@va.gov](mailto:atamanda.patterson-elliott@va.gov) . Please include in your questions the section of the solicitation/page number of the solicitation it is referring to.

### **OFFER SUBMITTAL INSTRUCTIONS:**

Offeror shall submit offers by Due Date/Time specified in Block 8 of Standard Form (SF) 1449 of solicitation to Amanda Patterson-Elliott, Contract Specialist, at [amanda.patterson-elliott@va.gov](mailto:amanda.patterson-elliott@va.gov) with "Solicitation – 36C26326Q0515" in subject line. Offers must be received no later than the date listed in Block 8 of the 1449.

Offer submitted quote shall submit the following: (Any document included in the submitted quotes shall not be handwritten. They must be electronic utilizing 11-point Arial, Calibri, Courier, or Times New Roman font, and not to exceed 20 pages)

- a. **Cover Page with Offeror Information** – The Name and address of the company and System of Awards Management (SAM) Status along with the SAM Unique ID. The name, address, phone number, email address of person(s) who are authorized to make contractual decisions for the company. The offeror will also identify any subcontractors by name and address.
- b. **Signed Standard Form (SF) 1449** page of solicitation

- c. **Signed SF30** Forms acknowledging solicitation amendments, if applicable
- d. **Quoted Items** – Offer will quote all requested items. If any requested item is not available, please notify Amanda Patterson-Elliott, Contract Specialist, at amanda.patterson-elliott@va.gov of this and to request a solicitation modification to be issued to remove this item. Any items not included in the quote will result in rejection of the quote without further consideration for award.
- e. **Price** - Offeror shall submit pricing in accordance with format listed in Section B.3 PRICE/COST SCHEDULE with firm fixed pricing which shall include all labor, overhead, profit, materials, shipping/delivery, and associated costs of the items listed. Pricing shall not be handwritten by offeror due to potential for readability issues if they arise.
- f. **Special Standards of Responsibility** – To assist the contracting officer in determining if the special standards of responsibility applicable to this procurement are met, offerors are asked to provide the following information with their quotes. Failure to include this information could result in a contracting officer's determination that an otherwise successful offeror is not eligible for contract award.
  - a. **Special Certifications: Offeror shall provide evidence that personnel performing work under the contract possess the following:**
    - **Verification that the contractor is a Schneider Electric EcoXpert Factory Authorized Partner able to support Andover Continuum and TAC I/A underneath ExoXpert.**
- g. **Past Performance** – Offeror shall provide a minimum of two (2) past performance references within the past five (5) years for projects of similar scope and complexity.

For Each reference, offeror shall list:

Organization Name

Point of contact and title

Email address and/or telephone number

Project name or contract number

Period of Performance

A brief description of the services performed

**NOTE: Failure to submit any of the required information, statements, or certifications will result in rejection of the quote without further evaluation and consideration for award.**

#### **OFFER PRICING GUARANTEES:**

The offeror agrees to hold the prices in its offer firm for 90 calendar days from the date specified for receipt of offers.

(End of Provision)

**E.2 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)**

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

| <u>FAR<br/>Number</u> | <u>Title</u>          | <u>Date</u> |
|-----------------------|-----------------------|-------------|
| 52.217-5              | EVALUATION OF OPTIONS | JUL 1990    |

**E.3 52.233-2 SERVICE OF PROTEST (SEP 2006)**

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Hand-Carried Address:

DEPARTMENT OF VETERANS AFFAIRS

NETWORK CONTRACTING OFFICE 23

1303 5TH STREET, SUITE 300

CORALVILLE IA 52241

Mailing Address:

DEPARTMENT OF VETERANS AFFAIRS

NETWORK CONTRACTING OFFICE 23

1303 5TH STREET, SUITE 300

CORALVILLE IA 52241

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

**E.4 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS  
REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)**

(a) *Definitions.* As used in this provision—

*Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component* have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

*Business operations* means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

*Marginalized populations of Sudan* means—

- (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and
- (2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

*Restricted business operations* means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

*Sensitive technology*—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), by submission of its offer—



(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at [CISADA106@state.gov](mailto:CISADA106@state.gov).

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design,

fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

## **E.5 VAAR 852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)**

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue NW, Washington, DC 20420 or Email: [EDProtests@va.gov](mailto:EDProtests@va.gov).

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

(End of Provision)

PLEASE NOTE: The correct mailing information for filing alternate protests is as follows:

Deputy Assistant Secretary for Acquisition and Logistics,  
Risk Management Team, Department of Veterans Affairs  
810 Vermont Avenue, N.W.  
Washington, DC 20420

Or for solicitations issued by the Office of Construction and Facilities Management:

Director, Office of Construction and Facilities Management  
811 Vermont Avenue, N.W.  
Washington, DC 20420

## **52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>  
<https://www.va.gov/oal/library/vaar/>

(End of Provision)

| <b><u>FAR<br/>Number</u></b> | <b><u>Title</u></b>                                                                                    | <b><u>Date</u></b> |
|------------------------------|--------------------------------------------------------------------------------------------------------|--------------------|
| 52.204-7                     | SYSTEM FOR AWARD MANAGEMENT                                                                            | NOV 2024           |
| 52.204-24                    | REPRESENTATION REGARDING CERTAIN<br>TELECOMMUNICATIONS AND VIDEO SURVEILLANCE<br>SERVICES OR EQUIPMENT | NOV 2021           |
| 52.222-18                    | CERTIFICATION REGARDING KNOWLEDGE OF CHILD<br>LABOR FOR LISTED END PRODUCTS                            | FEB 2021           |
| 52.229-11                    | TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE<br>AND REPRESENTATION                                       | JUN 2020           |
| 852.239-75                   | INFORMATION AND COMMUNICATION TECHNOLOGY<br>ACCESSIBILITY NOTICE                                       | FEB 2023           |

| <b><u>FAR<br/>Number</u></b> | <b><u>Title</u></b>                               | <b><u>Date</u></b> |
|------------------------------|---------------------------------------------------|--------------------|
| 852.233-70                   | PROTEST CONTENT/ALTERNATIVE DISPUTE<br>RESOLUTION | OCT 2018           |

(End of Addendum to 52.212-1)

## **E.6 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)**

(a) **Basis of Award.** This procurement is being conducted pursuant to FAR Part 13 procedures. The Government intends to award a contract resulting from this solicitation to the responsible offeror whose quote, conforming to the solicitation, quotes the lowest price, whose quoted price does not exceed the amount of funding available for the procurement, and whose quoted price is found to be reasonable. Price alone is the sole evaluation factor. In addition to the general standards of responsibility found at FAR § 9.104-1, in accordance with FAR § 9.104-2, the special standards of responsibility described below apply to this procurement. **Offerors who fail to meet any special standard of responsibility will not be eligible to receive contract award.**

**Special Standards of Responsibility:** The following special standards of responsibility apply to this procurement:

**Special Certifications.** Verification that the contractor is a Schneider Electric EcoXpert Factory Authorized Partner able to support Andover Continuum and TAC I/A underneath ExoXpert.

All quotes shall be subject to evaluation by Government personnel. The Government intends to make award based on the initial offers. If further questions are required, the Contracting Officer may contact the offerors for clarifications. The Government reserves the right to award without discussions based on initial evaluation of offers. The quotes will be evaluated strictly in accordance with its written content.

**NOTE: Failure to submit any of the required information, statements, or certifications may result in rejection of the quote without further consideration for award.**

(b) *Evaluation Process.* Quotes will be evaluated in the following manner. The lowest-priced quote will be identified. The lowest-priced quote will be evaluated to determine if the quoted price exceeds the amount of funding available for the procurement. If the quoted price does not exceed the amount of funding available for the procurement, the quoted price will be evaluated to determine if it is reasonable. If the quoted price is found to be reasonable, the offeror who submitted this quote will be identified as the “successful offeror.” The contracting officer will then determine if the successful offeror is responsible using the general standards of responsibility and the special standards of responsibility applicable to this procurement. If contract award cannot be made to the successful offeror, the contracting officer will evaluate the next lowest-priced quote following the procedures described above. This process will continue until a contract award can be made, or the contracting officer determines that no contract award can be made. The contracting officer may find all quotes not acceptable and cancel the solicitation if the lowest-priced quote exceeds the amount of funding available for the procurement. The contracting officer

may likewise find a quote under evaluation, as well as all remaining quotes, not acceptable and cancel the solicitation if the quote currently under evaluation exceeds the amount of funding available for the procurement. The Government intends to evaluate quotes and award a contract without discussions with offerors. However, the Government reserves the right to conduct discussions at any time if determined by the contracting officer to be in the Government's interest.

(c) Options. The Government will evaluate quotes for award purposes by adding the total price for all options to the total price for the basic requirement. This includes options under FAR 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options under FAR 52.217-8 will be accomplished by adding six months of the quoter's price for the last potential period of performance under this contract to the quoter's total price. For example, if the contract includes option periods that are exercisable under FAR 52.217-9, the quoter's total price for the purpose of evaluation will include the base period, all option periods, and an additional six months of the last option period. Quoters must price only the base and option periods specified in the contract line-item numbers (CLINs), and shall not submit a price for the potential six-month extension of services under FAR 52.217-8. The Government reserves the right to exercise the option under FAR 52.217-8 before the end of any of the contractor's performance periods and will be exercised at the price and/or rates in effect at the time the clause is exercised. Evaluation of options shall not obligate the Government to exercise the option(s). The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced or if the quoted price for the basic requirement or any option exceeds the amount of funding available for any of those requirements. Evaluation of options shall not obligate the Government to exercise the option(s).

(End of Provision)(End of Provision)